

University Grants Commission(Institutions Deemed To Be Universities) Regulations, 2010

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University Grants Commission(Institutions Deemed To Be Universities) Regulations, 2010

UNION OF INDIA

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University Grants Commission(Institutions Deemed To Be Universities) Regulations, 2010

Rule UNIVERSITY-GRANTS-COMMISSION-INSTITUTIONS-DEEMED-TO-BE-UNIVERSITIES-REGULATIONS-2010
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University Grants Commission(Institutions Deemed To Be Universities) Regulations, 2010

1893.

21st.

May, 2010

Preamble. - To regulate, in an orderly manner, the process of declaration of institutions as deemed to be universities; preventing institutions of dubious quality from being so declared; and, further to maintain quality of higher education imparted by institutions deemed to be universities consistent with the ideals of the concept of a university; the University Grants Commission, in exercise of powers conferred under clauses (f) & (g) of sub-section (1) of Section 26 of the

University Grants Commission Act, 1956, hereby, makes the following Regulations, namely :-

1.0

Short Title, Application and Commencement.

- 1.1 These Regulations may be called the UGC [institutions Deemed to be Universities] Regulations, 2010.

1.2

These Regulations shall apply to every institution seeking declaration as an institution deemed to be university under the Act as also, albeit prospectively, to an institution which has been declared as an institution deemed to be university under Section 3 of the UGC Act, 1956.

1.3

They shall come into force with effect from the date of their notification in the Official Gazette.

2.0

Definitions.

- In these Regulations, unless the context otherwise requires:

2.01

"Act" means the University Grant; Commission Act, 1956 [Act
3 of 1956

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2.02

"Campus" means Campus of the institution deemed to be university at its headquarters, wherein its major facilities, faculty, staff, students and its Academic Departments are located in a city/town/village in India. While 'off-Campus centre' means an approved (by the Central Government) centre of the institution deemed to be university beyond its Campus in the country, an 'off-shore Campus' means an approved (by the Central Government) centre of the institution deemed to be university beyond its Campus and outside India.

2.03

"Commission" means the University Grants Commission (UGC) constituted under the Act or any other body empowered to regulate an institution deemed to be university under any law for the time being in force.

2.04

"Committee of Experts" means a Committee appointed by the Commission consisting of academics, researchers or other experts in the relevant fields of knowledge and notified under these Regulations for such purpose as it may specify; and there may be as many Committees of Experts as the Commission may determine for different purposes.

2.05

"Constituent Institution" means an institution operating under the administrative, academic and financial control of the sponsoring body and declared as such under the Notification.

2.06

"De-novo Institution" means an institution devoted to innovations in teaching and research in unique and `emerging areas of knowledge', so determined by eminent peers of the academic community in the concerned disciplines.

2.07

"Emerging area of knowledge" means such area of knowledge as may be notified from time to time by the Commission on the recommendation of a Committee of Experts constituted by the Commission for the purpose; and, such Committee shall make its recommendation having regard to the stage of development of studies and research in relevant disciplines as well as the potential and need for raising standards of study and research thereof, in India.

2.08

"Government" means the Central Government, unless the context so specifies.

2.09

"Institution" means an institution for higher education engaged in teaching and research of high academic standards at the undergraduate, post-graduate or higher levels.

2.10

"Institution deemed to be university" means an institution for higher education so declared, on the recommendation of the Commission, by the Central Government under Section 3 of the Act.

2.11

"Processing Fee" n-means the charges that have to be paid by the applicant institution to the Commission along with the

application for processing such application. This amount shall take into account the expenditure to be incurred by the Commission for processing an application that shall include onsite visits of Expert Committees of the Commission. The Commission shall prescribe the processing fee and revise it from time to time.

2.12

"Notification" means a notification issued by the Central Government in the Official Gazette declaring an institution for higher education, as an institution deemed to be university u/s of the Act.

2.13

"Sponsoring body" means a body being a charitable or a not-for-profit Society or Trust making an application for declaring an institution under its administrative, academic and financial control as it deemed to be university.

2.14

"Statutory body" means a body constituted under any law for the time being in force for determining or maintaining standards of quality, in the relevant areas of higher education and bodies known as All India Council for Technical Education (AICTE), Medical Council of India (MCI), Dental Council of India (DCI), National Council for Teacher Education (NUPE), Bar Council of India (BCI), Indian Nursing Council (INC), etc. shall be the Statutory bodies for the purposes of these Regulations

3.0

Objectives of an Institution deemed to be University.

- The objectives for which an institution is declared by the Government as an institution deemed to be university shall be:

3.1

To provide for higher education leading to excellence and innovations in such branches of knowledge as may be deemed fit primarily at post-graduate and research degree levels fully conforming to the concept of university, namely, University Education Report (1948) and the Report of the Committee on Renovation and Rejuvenation of Higher Education in India (2009) and the Report of the Review Committee for Deemed to be Universities (2009).

3.2

To engage in areas of specialization with proven ability to make distinctive contributions to the objectives of the university education system that is - academic engagement clearly distinguishable from programmes of an ordinary nature that lead to conventional degrees in arts, science, engineering, medicine, dental, pharmacy, management, etc. routinely offered by conventional institutions.

3.3

To provide for high quality teaching and research and for the advancement of knowledge and its dissemination through various research programmes undertaken in-house by substantial number of full time faculty/research scholars (PhDs and Post Doctoral) in diverse disciplines.

3.4

To enable creation of institutions deemed to be university under the 'de novo' category devoted to unique and emerging areas of knowledge, not being pursued by conventional or existing institutions - particularly in specific areas of study and research preferably sponsored by the Government of a State/UT or the Central Government regarded as important for strategic needs of the country or for the preservation of our cultural heritage, so determined by a well laid-out process of wide consultation with the eminent peers of academic community.

4.0

Eligibility criteria for an Institution to be declared as an Institution deemed to be University.

- An institution applying to be declared as an institution deemed to be university shall have to meet the following stipulations :-

(a)

Eligibility criteria--

4.1

Has been in existence for at least fifteen years (except in case of institutions seeking declaration as an institution deemed to be university under the 'de novo' category).

4.2

Has acquired the characteristics of a university as demonstrated by the diversity of its programmes of study, proven contribution to innovations in teaching; and, verifiable high quality of research output.

4.3

Has a record of having undergone periodic reviews and assessments by recognized external accrediting/assessment agencies recognized under any law for the time being in force provided that an institution described in article 3.4 of these Regulations where no accreditation has been made or is possible, shall be subjected to a mandatory assessment of its suitability for declaration as a deemed to be university under the 'de novo' category.

4.4

Has well-established, broad-based, and viable under graduate, post graduate, and research programmes in several disciplines with firm inter-disciplinary orientation and linkages.

4.5

Shall not be an institution imparting education leading to conventional degrees only. For example, it shall not be limited to imparting programmes in engineering or management or medicine or pharmacy or dental sciences, etc., which can continue to be offered with the existing status of a college.

4.6

Shall not be an institution mainly engaged in offering training programmes for in-service personnel, or conducting only skill-oriented or production-related degree or diploma programmes.

4.7

Shall be engaged in quality research activity, publications and scholarly works of a high standard as evidenced by inclusion in internationally recognized databases; and shall have strong doctoral/post-doctoral research programmes and significant output of full time Doctoral-level degrees.

4.8

Shall have adequate number of full-time fully qualified faculty for teaching and research with at least some being acclaimed leaders in their discipline.

4.9

Shall possess the necessary infrastructure for quality research and seamless access to modern Information resources.

4.10

Shall have a proven record of securing merit-based extramural research funding from various public/private agencies.

4.11

Shall have generated Intellectual Property in the form of patents, copyrights and transfer of technology as a desirable attribute.

4.12

Shall have a demonstrable and proven record of extension services and societal engagement.

4.13

Each constituent unit included in the original proposal shall have accreditation with the highest grade offered, which is currently valid, either from National Assessment and Accreditation Council (NAAC) or all its eligible courses shall be accredited with the highest grade offered, which is currently valid, by National Board of Accreditation (NBA) or an accreditation agency recognized by the Commission from time to time; or valid certificate of assessment where the institution is seeking declaration as a 'de novo' institution deemed to be university.

4.14

Shall undertake not to offer any programme in the distance mode.

(b)

Conditions

4.15

Once an institution is declared as an institution deemed to be university, no other existing institution can be annexed to it as its constituent institution unless the institution proposed to be annexed fulfills independently, all the criteria stipulated in these Regulations.

4.16

There shall be a mandatory intensive external review of every deemed to be university once in every five years based on the criteria prescribed by the Commission from time to time.

4.17

The applicant institutions shall be a not-for-profit organization and shall not be engaged in commercialization of higher education.

4.18

The applicant institution shall have a track record of having not violated any of the provisions of an of the statutes guidelines of any Statutory Authority in the period of five year' preceding the date of submission of the application seeking status of an institution deemed to be university.

5.0

Governance System for an Institution to be declared as an Institution deemed to be University.

- An institution to be declared as a deemed to be university shall adhere to the following criteria:

5.1

The proposed institution deemed to be university shall be registered either as a riot-for profit Society under the Societies Registration Act, or as a not-for-profit Trust under the Public Trust Act with the Society/Trust strictly in accordance with the following provisions.

5.2

Among the authorities of the deemed to be universities, there; shall be a Chancellor who shall he appointed by the sponsoring Society or the sponsoring Trust. He/she shall be an eminent educationist or a distinguished public figure other than the President of the sponsoring Society or his/her close relatives.

5.3

There shall be no position of Pro-Chancellor(s).

5.4

The highest governing body of the deemed to be university shall be a Board of Management to be headed by the Vice Chancellor or a distinguished academic. This body shall consist of a minimum of ten members and a maximum of twelve members.

5.5

The Board of Management of the institution shall be independent of the Trust (or) Society with full autonomy to perform its academic and administrative responsibilities. The number of representative(s)ll nominee(s) of the trust (or) society on the Board of Management shall be limited to a maximum of two.

5.6

The Board of Management shall consist of eminent persons capable of contributing to and upholding university ideals and traditions.

5.7

There shall be a Board of Management consisting of the following:

- i) Vice-Chancellor.....Chairperson
- ii) Pro Vice-Chancellor (wherever applicable)
- iii) Deans of Faculties not exceeding; two (by rotation based on seniority)
- iv) Three eminent academics as nominated by the Chancellor
- v) One eminent academic to be nominated by the Central Government in consultation with UGC
- vi) Two teachers (from Professors, Associate Professors) by rotation based on seniority
- vii) One nominee of the sponsoring Society
- viii) The Registrar, who shall be the Secretary

The term of membership of the Board of Management and its powers are as shown in Annexure 1.

5.8

The Vice Chancellor shall be an eminent academic and shall be appointed by the Chancellor on the recommendation of a Search-cum-Selection Committee consisting of a nominee of the Government who shall be nominated in consultation with UGC, a nominee of the Chancellor and that of the Board of Management. The Committee shall be chaired by the nominee of the Board of Management.

5.9

All other statutory bodies of the deemed to be university shall be as described in Annexure 2

6.0

Admissions and fees structure.

- 6.1 Admission of students to all deemed to be universities, public or private, shall be made strictly on merit based on an All India examination as prescribed by the Regulations and in consistence with the national policy in this behalf, from time to time.

6.2

Admission of Non-Resident Indians (NRI)/Persons of Indian Origin (PIO)/Foreign Students to institutions deemed to be universities shall be governed by the guidelines/Regulations framed by the Commission in this behalf from time to time.

6.3

The institution deemed to be university shall preserve the records of admission at least for five years.

6.4

The fee structure for various programmes of study in the deemed to be universities shall also be fixed in accordance with the Fee Regulations framed by the Government or by the Commission in this behalf from time to time.

6.5

The level of the fees charged for the courses offered in deemed to be universities shall have a reasonable relation to the cost of running the course. The fee structure shall be displayed in the prospectus and on the institution's website.

6.6

Every institution declared as a deemed to be university, public or private, shall ensure that there is no commercialization of education. Further, every such institution shall provide for equity and access to all deserving students.

6.7

On being declared an institution deemed to be university under the Act, an institution shall admit students to its approved academic programmes, under its enrolment, only from the academic session that follows the notification issued by the Central Government. Enrolment of students to the institution, for any reason whatsoever, in anticipation of the declaration as an institution deemed to be university or inclusion of the institution under the ambit of an institution deemed to be university, shall render the application invalid. The students already on the rolls of the institutions prior to the date of application for declaration as an institution deemed to be university or its inclusion under the ambit of an institution deemed to be university shall continue to be the students, for all purposes, of the affiliating university with whom they have already been enrolled, and shall also be awarded degree only by that affiliating university.

7.0

Infrastructure and other facilities.

- 7.1 It shall have the necessary financial and infrastructural for administering and maintaining the institution as an institution deemed to be university and the management capable of contributing to the university ideals and traditions and enhancing the quality of teaching, research and extension activities.

7.2

It shall have the following minimum infrastructure and other facilities :

7.2.1

Land and Buildings:-

i) Not less than five acres of land at its main Campus if it is located in metropolitan area, seven acre of land at its main Campus, if it is located in non-metropolitan urban area, or ten acres of land at its main Campus, if it is located in non-urban areas or as per the norms of the Statutory/Regulatory body concerned, whichever is higher. In case of multi-disciplinary Institution, the aggregate land requirement shall be the sum of the land area prescribed by various Statutory Councils for all courses.

ii) Administrative Building of at least 1,000 sq. meters.

iii) Academic Building, including library, lecture theatres and laboratories, of at least 10,000 sq. meters, of which the central library alone being of about 2000 sq. meters.

iv) Some residential accommodation for teachers, guest house and hostel accommodation for students shall be in existence at the time of applying for declaration as an institution deemed to be university. Hostel accommodation shall be gradually increased to at least 25% of the students within 3 years of existence of institution deemed to be university.

v) In case the institution is engaged in-conducting professional programmes of study, the prevailing norms and standards of the respective Statutory Body shall be applicable, in addition to the above.

vi) Equipment, Books, Journals and other infrastructural facilities :

Equipment, Books and Journals of the institution shall be commensurate with the size and activities of the institution and shall satisfy the requirements, of the Statutory/Regulatory body concerned. The institution shall also have Broadband Connectivity of appropriate level in order to cater to the needs of self learning/virtual experiments/hands on techniques as well as provide electronic access to journals, books and other learning materials.

7.3

Academic Programmes :

Academic program shall offer sufficient scope for interdisciplinary learning and research.

Delivery of program shall be based on innovative teaching and learning process and evaluation system Shall be supported by adequate qualified faculty.

It shall have under graduate and at least five postgraduate academic Departments with every Department having in position a minimum permanent faculty of one Professor, two Readers and three Lecturers for general courses and in case of courses in other disciplines such as Engineering & Technology, Medicine, Dental, Nursing, Pharmacy, Physiotherapy etc. the faculty shall be as per the norms and guidelines of the respective Statutory Council having the qualifications and pay scales prescribed by the Commission/respective Statutory Council together with the necessary supporting technical and ministerial staff as per the norms and standards laid down by the respective Statutory body.

7.4

Financial Viability:

The financial viability of the institution shall be verifiable by the audited statements of accounts of the institution for the previous five years immediately preceding the date of application for declaration as deemed to be university.

7.5

Corpus Fund:

7.5.1

In the case of Institutions not maintained or financed by the Government, the following Corpus Fund shall be created and maintained permanently in the name of the proposed institution deemed to be university by way of irrevocable Government Securities or other forms approved by the Commission:

- a. For institutions conducting professional programmes, such as Engineering & Technology, Medicine - Rs. 8.00 crore
- b. For institutions conducting programmes, such as Management, Law, Education -- Rs.5.00 crore
- c. For institutions conducting other programmes - Rs.4.00 crore
- d. For institutions conducting both professional and other programmes - Rs. 10.00 crore
- e. For institutions under de novo category - Rs. 25 crore

7.5.2

The Corpus fund shall not be liquidated without prior permission of the Commission

7.5.3

The Commission shall have the power to direct any upward revision of the Corpus Fund from time to time,

7.5.4

The interest accrued on the Corpus Fund may be used only for the purpose of development of the institution deemed to be university.

7.5.5

In the event of withdrawal of the declaration of 'deemed to be university' status or dissolution of the Society or the Trust of the institution deemed to be university, the Corpus Fund shall stand forfeited to the Commission for meeting the liabilities, if any.

7.5.6

The provisions related to corpus fund shall be applicable only to those deemed universities which come into existence after notification of these Regulations. However, in the case of public funded institutions, the commitment of the State/UT or the Central Government to fund there continuously shall be considered as sufficient.

7.6

All movable and immovable properties of the institution or institutions that form the integral part of the proposed institution deemed to be university shall remain legally vested in the name of the institution in the manner as recognized under the Transfer of Property Act, 1882 or any other law Which may be in force. However, in case the immovable property has been acquired by the institution by way of lease, the lease shall be perpetual in nature and initially for at least 99 years.

7.7

The income and property of the institution, howsoever derived, shall be utilized only for the promotion of the objectives of the institution including its growth and development. No portion of the income/property of the institution shall be paid or transferred, directly or indirectly by way of profit, to the persons who were/are members of the institution, provided that nothing herein contained shall prevent the payment in good faith or remuneration to any member thereof or to any other person in return for any service rendered to the institution or for travelling, halting and other similar charges, and

all such expenditure shall be appropriately reflected in the accounts of the institution, maintained for the purpose.

8.0

Procedure for being declared as an Institution deemed to be a University.

- 8.01 The institution fulfilling the minimum eligibility criteria as laid down in these Regulations for considering proposals for declaration as an institution deemed to be a university may send its application in duplicate in the prescribed Proforma to the Secretary, Ministry of Human Resource Development, Department of Higher Education, Government of India. Processing fees for each application shall be paid to the Commission by way of a Demand Draft drawn in favour of The Secretary, University Grants Commission, Bahadurshah Zafar Marg New Delhi 110002.

8.02

It shall submit a certificate as also an undertaking along with its application to the effect that the professional programmes already being conducted by it, if any, have the approval of the relevant Statutory/Regulatory bodies like AICTE, MCI, DCI, NCTE, BCI, INC, etc., along with a duly attested copy of the letter of approval granted to it by such bodies. In addition, each application shall be accompanied by an essentiality certificate from the State Government concerned, wherever necessary.

8.03

It shall also submit, along with its application, a certificate from the affiliating university/affiliating universities, as the case may be, to the effect that the students already admitted in the institution or institutions that is/are to become integral part of the proposed institution deemed to be University institution enrolled under the said affiliating university/affiliating universities shall continue to be the students of that university for all purposes under the existing terms and conditions till they complete the relevant academic programmes.

8.04

The Ministry of Human Resource Development shall refer the application to the Commission for its advice.

8.05

The Commission shall make a preliminary scrutiny of the application submitted by the institution and, if necessary, write to the institution pointing out the lacuna(e), if any, and call for clarification/additional information/requisite documents. The Commission shall also write to the State/UT Government concerned to elicit the latter's views on the application.

8.06

The Commission shall examine the application with the help of an Expert Committee constituted as per the procedure prescribed in these Regulations. The Committee of Experts shall not include any sitting member of the Commission. The Expert Committee so constituted shall have one member as representative of the concerned Statutory Council(s), who may have the authorization to remit the advice.

8.07

The Expert committee shall, inter alia,--

- a) scrutinize and examine the application in detail;
- b) visit the Institution, hold discussions with its major stake holders and make on the spot assessment of its academic viability to function as an institution adhering to the concept and ideals of a university as enunciated in these Regulations;
- c) ascertain the academic and research excellence based on available records;
- d) give specific information on matters like performance of students who have graduated, research scholars registered for PhD, sponsored research projects completed and on-going, research publications in indexed journals, faculty having PhD, etc., for the past five years;
- e) verify its records to ascertain its financial viability; and
- f) submit a report to the Commission to enable it to advise the Government appropriately.

8.08

The report of the Expert Committee shall be examined by the Commission along with the views of the State/UT Government, if any, and the Statutory/Regulatory body, concerned and thereafter, the Commission shall submit its advice to the Ministry of Human Resource Development for the Ministry's consideration. The report of the Statutory body to the Commission shall indicate not merely the fulfillment of minimum requirements for the institution's performance as a college, but shall include its assessment of the achievements of the institution in high standards of education and research as well as its capability to promote innovation and excellence commensurate with the status as a university in contrast to a conventional professional college.

8.09

The advice of the Commission shall state the reasons for advising the Central Government to declare the institution as an institution deemed to be university or otherwise, along with the number and names of institutions to be part of the institution deemed to be university.

8.10

The Commission, in its final recommendations to the Central Government, shall apprise the Government regarding submission of necessary documents related to transfer of moveable and immovable assets in the name of the proposed institution deemed to be university and other conditions, if any.

8.11

Each State/UT Government shall formulate a transparent policy for giving its views under article 8.05 and shall send their considered comments. in the proforma prescribed by the Commission, within 60 days, to the Commission and the Central Government, with a copy to the institution concerned. In case no such comments are received b) the Commission within 60 days of the issue of the letter, it shall be presumed that the State/UT Government have no comments to offer on the application.

8.11.1

The State/UT Government recommending the proposal would have to indicate its willingness to safeguard the interest of the students admitted to the proposed deemed to be university in the event it ceases to exist as such, for any reason whatsoever.

8.12

Having been satisfied that the institution fulfills all the requirements as laid down in these Regulations the Central Government may issue a notification under Section 3 of the Act, declaring such institution as an institution deemed to be university. This declaration would initially be made for a period of five years. Confirmation of the declaration of the 'deemed to be university' would be based on a review of the institution deemed to be university's compliance and the institution's satisfactory performance with the provisions of these Regulations.

8.13

If on the advice of the Commission, the Central Government comes to the conclusion that the institution does not qualify to be declared as a institution deemed to be university, it may inform the institution accordingly stating reasons there for.

8.13.1

In case the Government disagrees with the recommendation of the Commission, the Government shall provide reasons in writing and its decision shall be final.

8.14

The decision not to declare an institution as an institution deemed to be university shall be considered for review not before one year from the date of the earlier decision only on a specific request for review made by the institution concerned to the Central Government. Institutions may request the Central Government for such a review only after having rectified the deficiencies based on which the Central Government had rejected its earlier application/proposal.

8.15

The Central Government may refer the matter to the Commission for the latter's advice.

8.16

The Commission shall then initiate the process of review, in the manner prescribed in this Regulation as per articles 8.05 through 8.07 above, for scrutiny and evaluation of the revised application by constituting a new expert Committee. This Committee shall be at least of the same size as the previous one that had recommended rejection earlier, with no expert member from the previous Committee as its member.

8.17

The decision taken on such a 'review' shall not be reconsidered or reviewed further. It is however permissible for the applicant institution to re-apply seeking declaration as an institution deemed to be university after a gap of not less than three years from the date on which the decision of the Government on the 'review' was communicated to the institution concerned.

8.18

The Commission shall post information about the status of each application on a monthly basis on its website. Further, the Commission shall submit an annual report to the Central Government giving a progress report on the fulfillment of the conditions stipulated in the notifications issued by the Central Government in this regard.

9.0

Institution deemed to be University under the de novo category.

- 9.1 An institution seeking declaration as an institution deemed to be university under this category, shall provide evidence of being devoted to unique and emerging areas of knowledge not being pursued by conventional/existing institutions - particularly in specific areas of study and research and preferably, sponsored by the Government of a State/UT or the Central Government regarded as, important for strategic needs of the country or for the preservation of our cultural heritage, so determined by a well laid-out process of wide consultation with the eminent peers of academic community. For this purpose, the applicant institution shall give detailed syllabi of the courses and research programmes conducted by it in the emerging areas of knowledge.

9.1.1

De novo institutions desiring to expand their activities and enter into related/complementary areas shall do so after its declaration as an institution deemed to be university is confirmed by the Government following a review at the end of five years of the institution's existence as an institution deemed to be university. Such institutions shall have to seek prior permission of the Central Government, which shall cause the Commission to subject such institutions to a rigorous peer review before according such permission.

9.2

On receipt of an application from an institution seeking declaration as an institution deemed to be university under the de novo category through the Government (Ministry of Human Resource Development) for advice, the Commission shall follow the procedures laid down in article 8 of the Regulations. However, before proceeding to the stage of the process as laid down in article 8, the Commission shall examine the application with the help of a Committee consisting of a Chairperson and three experts in the relevant disciplines, who shall be nominated by the Chairman, UGC. The Committee shall also include a representative from the relevant Statutory Council. The applicant institution shall also make a presentation before the Committee. The Committee shall have the duty to recommend whether it is an institution in emerging areas of knowledge in conformity with the policy of the Commission and whether the institution can be considered under de novo category before deciding on a visit to the institution by an Expert Committee of the Commission.

9.3

The Central Government may follow the procedure in article 8 and, after being satisfied that the institution fulfills the requirements as laid down in these Regulations, may issue a notification declaring the institution provisionally as an institution deemed to be university under the de novo category.

9.4

The Central Government may, on the advice of the Commission, confirm the declaration of an institution deemed to be university made under the de nova category, by way of a notification, after completion of five years of the institution as such. The Commission shall render its advice for this purpose on the basis of five successive annual performance reports of Expert Committee(s) appointed by the Chairman of the Commission to review the institution concerned. If the Central Government comes to the conclusion that the institution do es not qualify to be declared as an in situation deemed to be university, it may inform such institution accordingly stating reasons there for.

10.0

Funding.

- Institutions which are declared as institutions deemed to he universities shall continue to receive the funds for their maintenance and developmental expenditure, including the salary and non-salary increases in expenditure and the future expansion, from the same funding sources which have been funding them prior to such declaration. Such Institutions may also supplement their finances.

11.0

Maintenance of standards.

- An institution deemed to be university shall maintain standards, higher than the minimum, of instruction, academic and physical infrastructure, qualifications of teachers, etc. as prescribed for college level institutions by the Commission or by the Statutory/Regulatory body concerned, such as All India Council for Technical Education (AICTE), Medical Council of India (MCI), Dental Council of India (DCI), National Council for Teachers Education (NOTE), Bar Council of India (BCI), Indian Nursing Council (INC), etc. and shall obtain their approval for running various programmes of study, wherever applicable. This shall be periodically monitored by the duly constituted Committee (s) of the Commission.

12.0

New departments, off-campus centres and off-shore campuses.

- 12.01 An institution deemed to be university shall normally operate within its own main Campus as is declared by the Central Government in the notification and conduct approved programmes of study falling within the area of its specialization.

12.02

If an institution deemed to be university wishes to start a new Department dealing with a subject which is not in the field of its specialization or in an allied field, it may do so only if that field is covered under the objectives for which the institution deemed to be university was established, and with the prior approval of the Commission.

12.03

An institution deemed to be university may be allowed to operate beyond its approved geographical boundaries and start Off-Campus(es)/Off-shore Campus(es) under the following conditions:

12.03.1

It has been in existence as an institution deemed to be university for a minimum period of three years

12.03.2

It has been conducting post-graduate programmes and research

12.03.3

It has earned a reputation for excellent and innovative teaching, which, inter alia, includes practicing academic and examination reforms like introducing modular structure, continuous internal evaluation, etc. and for meaningful and purposeful research and extension activities

12.03.4

It has a good track record of conforming to the relevant Regulations/norms of the Commission and other Statutory/Regulatory bodies regarding minimum standards of instruction, qualification of faculty, merit-based admission of students on an all India basis and reasonable fee structure;

12.03.5

It has obtained prior approval of the Statutory/Regulatory body to start the new department/programme, wherever applicable, and undertakes to comply with all the requirements of the said body;

12.03.6

It has a currently valid accreditation from National Accreditation and Assessment Council (NAAC) with the highest grade offered;

12.03.7

It has adequate financial resources for starting the proposed new department/off-Campus Centre/off-shore Campus;

12.03.8

It has not entered into any franchise agreement, either overtly or covertly, with any other organization for establishing and running the off-Campus Centre/off-shore Campus of the institution deemed to be university.

12.04

A new Department in the Campus or in the approved off-Campus Centre shall be established by an institution deemed to be university only with the prior approval of the Commission.

12.05

An off-Campus Centre shall be established by an institution deemed to be university with the prior approval of the Central Government, on the recommendation of the Commission. The Central Government shall also consider the views of the State/UT Government concerned where the off-Campus Centre is proposed to be established.

12.06

An off-shore Campus of an institution deemed to be university shall be established with the prior permission of the Central Government, on the recommendation of the Commission:

Provided that the country, where such off-shore Campus is proposed to be established, requires grant of approval by it for such establishment, then the application to the Central Government for permission shall be made along with the approval granted by that country:

Provided further that if the country where such off-shore Campus is proposed to be established requires prior concurrence of the Government of India for the approval, referred to in the first proviso, of that country to be granted, then the Central Government, on the recommendation of the UGC, may give a 'No Objection' to the proposal but such

'No Objection' shall not be construed as permission of the Central Government to the institution deemed to be university to establish an off-shore Campus. Such an institution deemed to be university shall also submit an undertaking that it shall comply with all laws, norms or standards prescribed by that country where the off-shore Campus is proposed to be established.

12.07

An institution deemed to be university intending to start a new off-Campus Centre/off-shore Campus shall apply to the Government of India in the prescribed proforma at least six months prior to the proposed date of starting the Centre/off-shore Campus. The Government of India shall forward the proposal to the Commission for its advice. In case of establishment of a new Department in the Campus or an approved off-Campus Centre, the application in the prescribed format shall be sent directly to the Commission.

12.08

The Commission shall cause to be undertaken a spot visit/verification of the proposed off-Campus(es) and off-shore Campus(es) to verify the infrastructure facilities, programmes, faculty, financial viability, etc. before sending its advice to the Central Government. In case of a proposal for establishment of a new Department, the Commission shall arrive at a decision after the spot visit.

12.09

In case such permission is not granted, the institution deemed to be university may re-apply for such permission, but not before two years from the date of rejection of its earlier application.

12.10

The off-Campus Centre/off-shore Campus shall have adequate academic and physical infrastructure facilities as per the norms and standards prescribed by the Commission and the Statutory/Regulatory body concerned. Such facilities shall be proportionate to the size and activities of the off-Campus Centre/off-shore Campus. The off-shore Campus of the institution deemed to be university shall also comply with all norms and standards of the country in which it is established.

12.11

The off-Campus Centre/off-shore Campus shall be directly administered by the parent institution deemed to be university in matters of admission, instruction, evaluation, conferring of degrees, etc. In case of the off-shore Campus, lease in the name of the institution deemed to be university may be acceptable (as per the procedure of the country in which such off-shore campus is proposed to be established). In case lease is not permissible in any particular country, land and other assets in the name of a Strategic Partner shall be accepted. For this, the institution deemed to be university shall have a duly registered MOU/collaboration with the Strategic Partner which shall be governed in accordance with the law for the time being in force, in India.

12.12

The new Department/off-Campus Centre/off-shore Campus shall offer only those programmes of study which are approved by the appropriate bodies of the institution deemed to be university and the statutory/regulatory body concerned such as All India Council for Technical Education (AICTE), Medical Council of India (MCI), Dental Council of India (DCI), Pharmacy Council of India (PCI), National Council for Teachers Education (NCTE), Bar Council of India (BCI), Indian Nursing Council (INC), etc. wherever applicable. In case of any new or existing institution of higher learning proposed to be brought under the ambit as a constituent unit of any existing institution deemed to be university, only those students who were admitted in such institutions on a date subsequent to the date of notification of the declaration under Section 3 of the UGC Act 1956 in regard to bringing the institution under the ambit of the existing institution deemed to be university, shall be eligible for being examined by the institution deemed to be university and therefore, for the award of degree or any other qualification by the institution deemed to be university on successful completion of their respective courses or programmes of study.

12.13

In the case of an off-shore Campus, the remittances of funds from/to the main Campus shall be governed by the Reserve Bank of India rules.

12.14

The over-all performance of an off-Campus Centre/off-shore Campus shall be monitored by the Commission biennially for six years and subsequently after five years and whose directions on management, academic development and improvement shall be binding on the Campus.

12.15

If the functioning of the Campus/off-Campus Centre of an institution deemed to be university does not meet the standards stipulated by the Commission and remains unsatisfactory for two consecutive reviews, as assessed by the Commission, the institution deemed to be university may be instructed by the Central Government, on the advice of the Commission, to close down the off Campus Centre/Campus concerned. The Commission may initiate action against erring institutions deemed to be universities even on the basis of complaints received against such Centres I Campuses. In the interest of the students,,the Commission may allow the Centre/Campus to function till the last batch of students enrolled therein, as on the date of such instruction, passes out. The institution deemed to be university shall take appropriate steps to safeguard the interests of the faculty/staff at the Centre/Campus, In the event of closure of the Centre/Campus, the assets and liabilities thereof shall revert to the institution deemed to be university.

12.16

The Commission may give an 'in-principle No Objection' to the institution deemed to be university for establishing an off-Campus Centre, wherever required by the Statutory Councils, if the Commission is so satisfied about the viability of the proposal; but such 'No Objection' shall not be construed as permission of the Commission to the institution deemed to be university to establish an off-Campus Centre. In all such cases, formal proposal(s) shall be examined by the Commission under these Regulations. The institution deemed to be universities shall not admit student(s) to its course(s) in such off-Campus Centre(s) before the permission is granted by the Commission to such proposal(s).

13.0

Inclusion of other Institutions under the ambit of Institution deemed to be university.

- 13.01 An institution deemed to be university may apply, in the proforma prescribed by the Commission, for inclusion of institutions existing under the same management as its constituent institution/unit after confirmation of its declaration as an institution deemed. to be university, as mentioned under article 8.12.

13.02

All institutions deemed to be universities shall necessarily comply with the conditions that the Commission may insist upon in this regard from time to time, to prevent franchising of education.

13.03

If an institution existing under the same management is affiliated to a university, it shall be included in the ambit of the institution deemed to be university only on its disaffiliation from the affiliating university. The affiliating university shall also give its consent to the effect that the students of that particular institution(s) who have already been enrolled under it, shall continue to pursue their courses under its affiliation for all purposes and that it shall also award degrees to these students upon successful completion of the courses they are presently pursuing at such institution(s).

13.04

Such institution shall have accreditation with the highest grade offered, which is currently valid, either from National Assessment and Accreditation Council (NAAC) or all its eligible courses shall be accredited with the highest grade offered, which is currently valid, by National Board of Accreditation (NBA) or an accreditation agency recognized by the Commission from time to time.

13.05

An institution deemed to be university intending to bring an institution within its ambit as its constituent unit shall submit a proposal, in duplicate, in the proforma prescribed by the Commission, to the Secretary, Ministry of Human Resource Development (Department of Higher Education) Government of India, subject to the said institution fulfilling the eligibility criteria and other relevant conditions stipulated under these Regulations.

13.06

The Ministry of Human Resource Development, Government of India shall refer one copy of the proposal to the Commission for advice.

13.07

The Commission shall then adopt the procedure described under articles 8.05 to 8.07 to examine the proposal so received by it.

13.08

The Commission shall verify all the relevant factors and aspects through its Expert Committee before making a suitable recommendation to the Ministry of Human Resource Development, Government of India.

13.09

The inspection report as well as the recommendation of the Expert Committee along with the opinion/comments of the Statutory/Regulatory-body concerned and the views, if any, of the State Government concerned shall be examined by the Commission as per procedure before making recommendation to the Ministry of Human Resource Development, Government of India.

13.10

If rejected, the Central Government shall inform the institution. accordingly.

13.11

After taking the relevant steps of the procedure prescribed in article 8, the Central Government shall notify the inclusion of the institution under the ambit of the institution deemed to be university on being satisfied that institution deemed to be university has:

a) earned a reputation for excellent and innovative teaching, for meaningful and purposeful research, for practicing academic and examination reforms like modular structure, continuous internal evaluation, etc. and for extension activities; and

b) a good track record of conforming to the relevant Regulations/norms of the Commission and the Statutory/Regulatory body concerned regarding minimum standards of instruction, qualifications of teachers, merit-based admission of students on an all India basis and reasonable fee structure.

13.12

On an institution coming under the ambit of the institution deemed to be university, the institution deemed to be university shall award degrees only to the students enrolled in the institution after the institution concerned disaffiliates itself from the affiliating university. The students enrolled in such an institution prior to its inclusion under the ambit of the institution deemed to be university, shall, receive their degrees from the university to which the institution was affiliated at the time of their enrollment.

13.13

Once an institution comes under the ambit of an institution deemed to be university, it shall be at par with an off-Campus of the institution deemed to be university, and all articles of these Regulations relating to off-Campus Centres of institutions deemed to be universities shall be applicable to it.

13.14

The entire movable and immovable property as well as the existing manpower of the institution and its records (except those pertaining to the students who had already registered till they pass out of the Institution) shall be transferred to the institution deemed to be university before the notification.

13.15

If an institution, not being under the same registered Society/Trust, is desirous of coming under the ambit of an institution deemed to be university, it shall apply to the Society/Trust and become a part of the Society/Trust, as per procedure of Societies Registration Act or Trust Act, as the case may be. Thereafter, the Society/Trust shall follow these Regulations to bring it under the ambit of the institution deemed to be university.

13.16

If the application of an institution deemed to be university for bringing an institution under its ambit is rejected for any reason whatsoever, the institution deemed to be university shall be eligible to re-apply, but not before two years from the date of the rejection of its earlier such application.

14.0

Joint Programmes.

- 14.1 An institution deemed to be university may conduct joint academic programme(s) with other Universities/institutions deemed to be universities in India and abroad with the prior approval of the Commission. The proposed, joint programme(s) shall conform to the Acts and Rules of the Commission that shall apply to such programmes from time to time.

14.2

There shall be sufficient safeguards so as to protect the interests of students enrolled in such programmes.

14.3

The joint-programmes shall be subjected to mandatory assessment and accreditation.

15.0

Institution deemed to be University open to all.

- 15.1 Admission and employment in an institution deemed to be university shall be open to all citizens of India regardless of race, religion, caste or creed and the area/place of residence in India.

15.2

All policies and procedures, as applicable to the university level institutions of public and privately funded institutions respectively, shall apply to the appropriate category of institutions deemed to be universities.

16.0

Institution deemed to be University to be unitary.

- Once an institution is declared as a unitary institution deemed to be university, it shall not affiliate any other institution.

17.0

Reservation policy.

- The institution deemed to be university shall implement the reservation policy in admissions and recruitment, in accordance with any Act of Parliament for the time being in force.

18.0

Distance education.

- No institution deemed to be university, so declared by the Central Government subsequent to these Regulations, shall be allowed to conduct courses in the Distance mode. Also, such institutions declared as such, prior to these Regulations, shall not be allowed to conduct courses in the Distance mode from any of its off-Campus Centre/off-shore Campus approved subsequent to these Regulations.

19.0

Meetings of University Bodies.

- The institution deemed to be university shall conduct meetings of all its statutory bodies, like Board of Management, Academic Council, etc. at regular intervals as per the Regulations and the minutes of each such meeting shall be displayed in the website of the institution.

20.0

Use of the word 'University'.

- An Institution deemed to be University shall not use the word 'University' suffixed to its name but may mention the words "deemed to be university" within parenthesis suffixed thereto.

21.0

Prohibition of use of certain words in nomenclature.

- Educational institutions established by the Central Government alone may prefix the words, "Indian/National Institute" (either in English or in vernacular) with their respective names.

22.0

Consequences of violation of regulations.

- 22.1 The Central Government/Commission shall have the right to cause an inspection of the institution deemed to be university, its buildings, laboratories, its examinations, teaching and other work conducted or done by the institution deemed to be university, and to cause an enquiry to be made, if considered necessary by the Central Government/UGC, in respect of any matter of the institution deemed to be university.

22.2

After conducting an inspection of the institution deemed to be university by the Commission on its own or on the basis of any other authentic information or report received from any other reliable source(s) and after considering the explanation submitted by the institution deemed to be university, if the Commission is satisfied that the institution deemed to be university has violated any of the provisions of these Regulations or any directives issued by the Commission, the Commission may direct the concerned institution deemed to be university not to admit new students for the period to be decided by the Commission and in case of deliberate continuous violation of these Regulations, may advise the Central Government for withdrawal of the declaration notifying the institution as an institution deemed to be university. In the event of such withdrawal of the declaration, the entire movable and immovable properties of the institution deemed to be university shall stand forfeited to the Commission. For first violation, the withdrawal may be restricted to one academic session which can be extended up to five academic sessions for repeated violations. However, for serious and deliberate violation, the status of deemed to be university shall be withdrawn permanently.

22.3

In the event of the withdrawal of the deemed university status, action shall be simultaneously initiated to protect the

interests of the students according to such precedents and practices as applicable or determined for the specific situation.

22.4

If an institution deemed to be university wishes to withdraw itself or its constituents from the status of 'institution deemed to be university', it may do so with the prior permission of the Central Government. Such withdrawal shall take effect only after the last batch of students then enrolled, passes out of the institution deemed to be university.

23.0

Consideration of old proposals.

- All proposals (whether seeking declaration as an institution deemed to be university or seeking approval for establishing off-Campus Centres/off-shore Campus(es) or inclusion of off-Campus Centres in the ambit of the institution deemed to be university), which are either pending/in process in the Commission or have been received by the Central Government, shall be governed by these Regulations.

.....
Secretary

Annexure-1

1.

Every institution seeking to be declared as an institution deemed to be university under Section 3 of the UGC Act shall be registered as a Society or as a Trust it, the name and style of the proposed institution deemed to be university.

2.

Each such institution shall indicate, unambiguously, the following:

- i) Name: The name of the Society/Trust, along with the name of the proposed institution deemed to be university.
- ii) Office: The registered office of the Society or Trust; the official address of institution.
- iii) Objectives: The objectives of the proposed institution deemed to be university shall be clearly enunciated. The objectives shall be well-defined and well known to the students, teachers and non-teaching staff of the proposed institution deemed to be university.
- iv) The objectives as set forth above shall be regarded in law to be charitable in nature.

3.

Programmes of the institution deemed to be university

3.1

In keeping with objectives, the institution shall spell out the following:

(i)

The proposed programmes of study and research and facilities to provide for instruction in such branches of study as the institution deems appropriate for the advancement of learning and dissemination of knowledge;

(ii)

The nature of Degrees and Diplomas and/or Certificates to persons who have satisfactorily completed the approved programmes of study and/or research and the scheme prescribed for examination and evaluation.

(iii)

Details of other academic schemes such as visitor-ship, fellowship, prizes, and medals.

4.

Management of the Institution

4.1

The names, addresses, and occupation of the members of the first Board of Management to whom the management of the institution is entrusted till the various authorities are constituted in accordance with the Rules, shall be furnished at the time of application along with their letter of consent.

4.2

The Board of Management shall be a compact and homogeneous body enabling it to promptly take and implement well considered decisions and to effectively handle crisis situations.

4.3

The Board of Management shall consist of :-

- ix) Vice-Chancellor Chairperson
- x) Pro Vice-Chancellor (wherever applicable)

- xi) Deans of Faculties not exceeding two (by rotation based on seniority)
- xii) Three eminent academicians as nominated by the Chancellor
- xiii) One eminent academic to be nominated by the Central Government in consultation with UGC
- xiv) Two teachers (from Professors, Associate Professors) by rotation based on seniority
- xv) One nominee of the sponsoring Society
- xvi) The Registrar, who shall be the Secretary

The term of membership of the Board of Management and its powers shall be as follows :

4.3.1

All the members of the Board of Management other than the ex-officio members and the members of the teaching staff shall hold office for a term of three years and shall be eligible for reappointment.

4.3.2

Members of teaching staff in the Board of Management shall hold office for a period of 2 years or till such time as they continue to be members of the teaching staff, whichever is less.

4.4

Power of the Board of Management :

The Board of Management shall be the principal organ of Management and principal executive body of the institution deemed to be university and shall have the following powers, namely:

- i) To establish, on the advice of the Academic Council, Divisions and Departments for the academic work and functions of the institution deemed to be University and to allocate areas of study, teaching and research to them;
- ii) To create teaching and academic posts, to determine the number, cadres and qualifications thereof as approved by the Commission, and statutory body concerned and the emoluments of such posts in consultation with the Finance Committee;
- iii) To appoint such Professors, Associate Professors, Assistant Professors and other academic staff as may be necessary on the recommendation of the Selection Committee;
- iv) To lay down the duties and conditions of service of the Professors, Associate Professors and Assistant Professors and other academic staff of the institution "deemed to be university in consultation with the Academic Council;
- v) To provide for appointment of Visiting fellows and Visiting Professors;
- vi) To create administrative, ministerial and other necessary posts in terms of the cadres laid down and to make appointment thereof in consultation with the Finance Committee;
- vii) To constitute, for the benefit of the teaching, academic, technical, administrative and other staff, such pension, insurance, provident fund and gratuity as it may deem fit and aid in the establishment and support of Association, Institutions, Funds, Trusts and conveyances calculated to benefit the staff and the students of the Institution deemed to be University
- viii) To regulate and enforce discipline among the employees of the institution deemed to be university and to take appropriate disciplinary action, wherever necessary,
- ix) To entertain and adjudicate upon and, if thought fit, to redress any grievances of the employees and students of the institution deemed to be university;
- x) To grant leave of absence to the Vice-Chancellor and to make necessary arrangements for carrying on his/her functions during the period of absence;
- xi) To approve the award of Degrees and diplomas based on the results of examinations and tests and to confer, grant or award Degrees, Diplomas, Certificates and other academic titles and distinctions;
- xii) To fix the emoluments and traveling and other allowances of examiners, moderators, tabulators and such other personnel appointed for examinations in consultation with the Academic Council and the Finance Committee;
- xiii) To institute Fellowships, including Travel Fellowships, Scholarships, Studentships, Medals and Prizes in accordance with the Rules to be framed for the purpose;
- xiv) To advise the Holding Trustees (if any) on matters regarding acquisition, management and disposal of any immovable property on behalf of the institution deemed to be university.
- xv) To purchase, take on lease or accept as gift or otherwise any land or buildings or works which may be necessary or convenient for the purpose of the institution deemed to be university, on such terms and conditions as it may deem fit and proper, and to construct or alter and maintain any such building(s) or work(s);
- xvi) To transfer or accept transfers of any movable property on behalf of the institution deemed to be university;

- xvii) To execute in consultation with the Holding Trustees (if any) conveyance, transfer Government Securities, re-conveyances, mortgages, leases, bonds, licenses and agreements in respect of property, movable or immovable, belonging to the institution deemed to be university or to be acquired for the purposes of the institution deemed to be university;
- xviii) To issue appeals for funds for carrying out the objectives of the institution deemed to be university and, consistent with the provisions of the objectives, to receive grants, donations, contributions, gifts, prizes, scholarship, fees and other moneys, to give grants and donations, to award prizes, scholarships, etc.;
- xix) To raise and borrow in consultation with the Holding Trustee (if any) money on bonds, mortgages, promissory notes or other obligations or securities founded or based on any of the properties and assets of the institution deemed to be university, or without any securities, upon such terms and conditions as it may think fit and to pay out of the funds of the institution deemed to be university, all expenses incidental to the raising of money and to repay and redeem the money borrowed;
- xx) To draw and accept and snake and endorse discount and negotiate Government of India's and other promissory notes, bills of exchange, cheques or other negotiable instruments;
- xxi) To maintain a fund to which shall be credited:
- (a)
all moneys provided by the Central or State/UT Government(s)/university Grants Commission;
- (b)
all fees and other charges received by the institution deemed to be university;
- (c)
all money received by the institution deemed to be university as grants, gifts, donations, benefactions, bequest or transfers and
- (d)
all money received by the institution deemed to be university in any other manner or from any other source;
- xxii) To open account or accounts of the institution deemed to be university with anyone or more scheduled banks and to lay down the procedure for operating the same;
- xxiii) To deposit all moneys credited to the funds in scheduled banks or to invest them in consultation with the Finance Committee;
- xxiv) To invest the funds of the institution deemed to be university or money entrusted to the institution deemed to be university in or upon such securities and in such manner as it may deem fit and from time to time transpose any investment;
- xxv) To maintain proper accounts and other relevant records and prepare Annual Statements of Accounts, including the balance sheet for every previous financial year, in such form as may be prescribed by the Regulations/Bye-Laws;
- xxvi) To manage, regulate and administer the revenue the finance, accounts, investments, properties, business and all other administrative affairs of the institution deemed to be university and for that purpose to appoint such agent or agents as it may deem fit;
- xxvii) To provide building or buildings, premises. furniture, fittings, equipments, appliances. and other facilities required for car-ring on the work of the institution deemed to be university;
- xxviii) To establish, maintain and manage residencies for faculty and staff and hostels for the students of the institution deemed to be university;
- xxix) To recognize and maintain control and supervision on hostels owned and managed by other agencies for the students of the institution deemed to be university and to rescind such recognition;
- xxx) To appoint such committees for such purpose and with such, towers as the Board of Management may think fit and to co-opt such persons on these Committees as it thinks fit;
- xxxi) To appoint in order to execute an instrument or transact any business of the institution deemed to be university, any, reason as attorney of the institution deemed to be university with such powers as it may deem fit;
- xxxii) To appoint Auditor(s) or the ensuing year;
- xxxiii) To select an emblem and to have a common seal for the institution deemed to be university and to provide for the custody and use of such seal;
- xxxiv) To delegate all or any of its powers to any Committee or sub-Committee constituted by it or the Vice-Chancellor of the institution deemed to be university or any other person;

xxxv) To conduct all administrative affairs of the institution deemed to be university not otherwise specifically provided for;

xxxvi) To take all necessary decisions for the smooth and efficient functioning of the institution deemed to be university.

4.5

Meetings of-the Board of Management:

(i)

The Board of Management shall meet at least four times a year. Not less than 15 days' notice shall be given of a meeting of the Board of Management. Eight (8) members shall make the quorum for a Board of Management meeting.

(ii)

Every meeting of the Board of Management shall be presided over by its Chairman and in his/her absence, by a member chosen by the members present, from amongst themselves.

(iii)

Each member of the Board of Management, including its Chairman, shall have one vote and decisions at the meetings of the-Board shall be taken by simple majority. In case of a tie, the Chairman shall have a casting vote.

(iv)

Any business which it may be necessary for the Board of Management to perform may be carried out by circulating appropriate resolution thereon among its members and any resolution so circulated and approved by a simple majority shall be as effective and binding as if such resolution had been passed at the meeting of the Board.

(v)

A copy of the proceedings of each meeting shall be furnished to the Chancellor, of the institution deemed to be university as soon as possible after the meeting.

4.6

Termination of Membership

If a member other than the Vice-Chancellor, and those representing the teachers, accepts a full time appointment in the Institution deemed to be University or does not attend three consecutive meetings of the Board of Management, without proper leave of absence, he/she shall cease to be a member of the Board of Management.

4.7

Constitution of Standing Committee and Ad-hoc Committee by the Board of Management

4.7.1

Subject to the provision of the Rules of the Institution deemed to be University, the Board of Management may, by a resolution, constitute such Standing Committee or Ad hoc Committee or Committees for such purposes and with such powers as the Board may think fit for discharging any function of the institution deemed to be university or for inquiring into, reporting and advising upon any matter of the Institution deemed to be University.

4.7.2

The Board of Management may co-opt such persons on the Standing Committees or Ad-hoc Committees, as it may consider suitable.

4.8

Delegation of Powers of the Board of Management

The Board of Management may, by a resolution, delegate to the Vice Chancellor or any other officer of the institution deemed to be university of the Standing Committee or the Ad-hoc Committee such of its powers as it may deem fit subject to the condition that the action taken by the Vice Chancellor or the officer concerned or the Standing Committee or the Ad-hoc Committee concerned in the exercise of the powers so delegated shall be reported at the next meeting of the Board of Management.

Annexure-2

Other Authorities of the institution deemed to be university

The following shall be the other authorities of the institution deemed to be university:

1. Academic Council
2. Planning and Monitoring Board
3. Finance Committee
4. Board of Studies
- 5.

Such other authorities as may be declared by the Rules to be authorities of the institution deemed to be university

1. Academic Council (AC)

1.1

The Academic Council shall be the principal academic body of the institution deemed to be university and shall, subject to the provision of the Rules, have the control over and be responsible for the maintenance of standards of teaching, research and training, approval of syllabus, co-ordination of research activities, examinations and tests within the institution deemed to be university and shall exercise such powers and perform such other duties and functions as may be prescribed or conferred upon it by the Rules of the institution.

1.2

Composition of the Academic Council

The Academic Council shall consist of the following persons, namely:

1. Vice Chancellor..... Chairperson
2. Pro Vice-Chancellor (if any)
3. Dean(s) of Faculties
4. Heads of the Departments
5. Ten Professors other than the Heads of the Departments (l>y rotation of seniority)
- 6.

Three Associate Professors from the Departments other than the Heads of the Departments by rotation of seniority

7.

Three Assistant Professors from the Departments by rotation of seniority

8.

Three persons from amongst educationists of repute or persons from any other field related to the activities of the Institution deemed to be University who are not in the service of the Institution deemed to be University, nominated by the Vice-Chancellor

9.

Three persons who are not members of the teaching staff, co-opted by the Academic Council for their specialized knowledge

10.

The Registrar, who shall be the Secretary of the Academic Council

Note: The representation of different categories shall be only through rotation and not through election. It may also be ensured that no particular faculty dominates the membership of the Council.

1.3

Term of Membership:

The term of members other than the ex-officio members shall be two years.

1.4

Powers and Functions of the Academic Council:

The Academic Council shall have the following powers and duties, namely :-

- i. To consider matters of academic interest either on its own initiative or at the instance of the Board of Management or those proposed by the departments/faculties and to take proper action thereon;
- ii. To exercise general supervision over the academic work of the institution deemed to be university and to give direction regarding methods of instruction, evaluation, and improvements in academic standards;
- iii. To promote research within the institution deemed to be university, acquire reports on such researches from time to time;
- iv. To prescribe courses of study leading to degrees and diplomas of the institution deemed to be university;
- v. To make arrangements for the conduct of examinations in conformity with the Bye-Laws;
- vi. To appoint examiners, moderators, tabulators and such other personnel for different examinations;
- vii. To maintain proper standards of the examinations;
- viii. To recognize diplomas and degrees of universities and other Institutions and to determine equivalence with the diplomas and degrees of the institutions deemed to be university;
- ix. To suggest measures for departmental co-ordination;
- x. To make recommendations to the Board of Management on:

- a) measures for improvement of standards of teaching research and training;
- b) institution of Fellowships, Travel Fellowships, Scholarships, Medals, Prizes etc.;
- c) to recommend to the Board of Management, the establishment or abolition of departments/centres; and
- d) To frame rules covering the academic functioning of the institution deemed to be university, admissions, examinations, award of fellowships and studentships, free-ships, concessions, attendance, discipline, residence etc.
- xi. To appoint sub-committees to advise on such specific matters as may be referred to it by the Board of Management;
- xii. To consider the recommendations of the sub-committees and to take such action as the circumstances of each case may require;
- xiii. To take periodical review of the activities of the Departments/Centres and to take appropriate action with a view to maintaining and improving standards of instruction;
- xiv. To recommend institution of teaching posts (Professors, Associate Professors and Assistant Professors) to the Board of Management; and
- xv. To exercise such other powers and perform such other duties as may be conferred or imposed upon it by the Rules.

1.5

Meeting of the Academic Council--

- i. The Academic Council shall meet as often as may be necessary but not less than three times during an academic year. Not less than 15 days' notice shall be given of a meeting of the Academic Council.
- ii. One third of the total number of members of the Academic Council shall constitute the quorum for the meeting of the Academic Council.
- iii. Each member, including its Chairman, shall have one vote and decisions at the meetings of the Academic Council shall be taken by simple majority. In case of a tie, the Chairman shall have a casting vote.
- iv. Any business which it may be necessary for the Academic Council to perform, except such as may be placed before its meeting, may be carried out by circulation of the resolution among all its members and the resolution so circulated and approved by a simple majority shall be effective and binding as if such resolution had been passed in the meeting of the Academic Council, provided that at least one half of the total number of the members of the Academic Council have recorded their views on the resolution.

2.0

Planning & Monitoring Board:

2.1

The Planning & Monitoring Board shall be the principal Planning Body of the institution deemed to be university and shall be responsible for the monitoring of the development programmes of the Institution deemed to be University.

2.2

The Vice-Chancellor shall be the Chairman of the Planning & Monitoring Board. The Registrar shall be its Secretary. It may include seven internal members and three outside eminent experts, including one nominee of the UGC.

2.3

The constitution, powers and functions of the Planning & Monitoring Board shall be prescribed by the Rules.

2.4

The Planning & Monitoring Board would have the right to advise the Board of Management and the Academic Council on any matter which it considers necessary for the fulfillment of the objectives of the institutions deemed to be university.

2.5

The recommendations of the Planning & Monitoring Board shall be placed before the Board of Management for consideration and approval. Proposals relating to the academic matters may be processed through the Academic Council.

3.0

Finance Committee (FC)

3.1

Composition of the Finance Committee:

The Finance Committee shall consist of the following members

- 1. Vice Chancellor - Chairperson
- 2. Pro Vice-Chancellor
- 3. A person nominated by the Society or Trust

4. Two nominees of the Board of Management, one of whom shall be a member of the Board
5. A representative of the Central Government
6. A representative of the State Government, in case the institution deemed to be university is receiving grants from the State Government
7. Finance Officer-Secretary

3.2

Terms of Office of the Finance Committee:

All members of the Finance Committee other than ex-officio members shall hold office for a term of three years.

3.3

Powers and Functions of the Finance Committee:

(i)

To consider the annual accounts and financial estimates of the institution deemed to be university and submit them to the Board of the Management for approval;

(ii)

To consider and recommend the annual budget and revised estimates to the Board of Management;

(iii)

To fix limits of the total recurring expenditure and the total non-recurring expenditure of the year based on the income and resources of the institution deemed to be university.

Note: No expenditure other than that provided in the budget shall be incurred by the institution deemed to be university without the approval of the Finance Committee.

3.5

Meetings of the Finance Committee:

The Finance Committee shall meet at least twice a year to examine the accounts and to scrutinize proposals for expenditure. Five members shall constitute the quorum for the meeting.

4.0

Board of Studies:

4.1

There shall be one Board of Studies for each Department of the institution deemed to be university.

4.2

The Board of Studies of each faculty/Department shall consist of:

1. Dean of faculty/Head of the Department - Chairperson
2. All Professors of the faculty/Department
3. Two Associate Professors of the faculty/Department by rotation of seniority
4. Two Assistant Professors of the faculty/Department by rotation of seniority
5. Not more than 2 persons to be co-opted for their expert knowledge including those belonging to the profession or industry concerned

4.3

The powers and functions of the Board of Studies shall be prescribed by the Rules of the Institution deemed to be University.

5.0

Selection Committee:

5.1

There shall be a Selection Committee for making recommendations to the Board of Management for appointment to the post of Professors, Associate Professors, Assistant Professors and such other posts as may be prescribed by the Rules, in the institution deemed to be university.

5.2

Every Selection Committee shall be constituted in accordance with the Rules framed by the Board of Management.

5.3

Meetings of the Selection Committee

(a)

The meetings of the Selection Committees shall be convened by the Chairman of the Selection Committee as and when

necessary.

(b)

Four members of the Selection Committee shall consisting of at least two experts shall form the quorum.

(c)

If the Board of Management is unable to accept the recommendations of the Selection Committee, it shall record its reasons thereof and require an appropriate review by a high power committee.

6.0

Officers of the institution deemed to be university

The following shall be the officers of the institution deemed to be university:

a) Chancellor

b) Vice-Chancellor

c) Pro Vice-Chancellor

d) Registrar

e) Finance Officer

f) Controller of Examinations

g) Dean of Faculties

h) Head of Department

i) Such other officers as may be prescribed in the Rules of the institution deemed to be university

6.1

Chancellor

The institution deemed to be university shall have a Chancellor who shall, when present, preside over the convocations of the institution deemed to be university but shall not be the Chief Executive Officer. The Chancellor shall be appointed by the sponsoring Society or Trust, shall hold office for a period of 5 years and shall be eligible for one more term. The Chancellor shall neither be a member of the Society or the Trust nor a close relative of the President of the Society or the Trust.

Where power is conferred upon the Chancellor to nominate persons to authorities, he/she shall, to the extent necessary, nominate persons to represent the various interests for the furtherance of the objectives of the institutions deemed to be university.

6.2

Vice-Chancellor

(i)

The Vice-Chancellor shall be a whole time salaried officer of the institution deemed to be university and shall be appointed by the Chancellor from a panel of three names suggested by a Search-cum-Selection Committee. The composition of the Search-cum-Selection Committee shall be:-

1. A nominee of the Chancellor

2. A nominee of Central Government; who shall be an eminent academic nominated by the Government in consultation with the UGC

3. A nominee of the Board of Management

(ii)

The Vice-Chancellor shall hold office for a term of 5 years. He shall be eligible for a second term, provided that in no case shall he hold office beyond the age of 70 years.

Provided that notwithstanding the expiry of the period of 5 years, he/she may continue in office for not more than six months or till his/her successor is appointed and the latter assumes office, whichever, is earlier.

(iii)

In case of the office of the Vice-Chancellor becoming vacant due to death, resignation or otherwise and in case of his/her-absence due to illness or any other cause, the Pro Vice-Chancellor, and in his/her absence, the Senior most Dean or, if there is no Dean, the senior most Professor shall perform the duties of the Vice-Chancellor until a new Vice-Chancellor is appointed, or the existing Vice-Chancellor resumes duties, as the case may be.

6.3

Powers of the Vice-Chancellor

i) The Vice-Chancellor shall be the Principal Executive Officer of the institution deemed to be university and shall

exercise general supervision and control over the affairs of the institution deemed to be university and shall be mainly responsible for implementation of the decisions of all the authorities of the Institution deemed to be University.

ii) The Vice-Chancellor shall be the Ex-officio Chairman of the Board of Management, the Academic Council, the Finance Committee, the Planning & Monitoring Board and Selection Committees.

iii) The Vice-Chancellor shall have the power to convene or cause to be convened meeting of the various authorities of the institution deemed to be university.

iv) The Vice-Chancellor may, if he/she is of the opinion that immediate action is called for on any matter, he/she shall exercise any power conferred upon any authority of the institution deemed to be university under its Regulations and Rules, and take such action or proceed to take such action and shall report to the authority concerned on the action taken by him/her on such matters.

Provided that if the authority concerned as mentioned in clause (ii) above is of the opinion that such action ought not to have been taken, it may refer the matter to the Chancellor whose decision thereon shall be final.

Provided further that if any person in the service of the institution deemed to be university is aggrieved by the action taken by the Vice-Chancellor under the said clause, he/she shall have the right to appeal against such decision to the Board of Management within 30 days from the date on which such action is communicated to him/her and thereupon the Board of Management shall call the meeting in a subsequent meeting and may confirm, modify or reverse the action taken by the Vice-Chancellor.

v) It shall be the duty of the Vice-Chancellor to ensure that Regulations and Rules of the institution deemed to be university are duly observed powers in and implemented; and, he/she shall have all the necessary this regard.

vi) All powers relating to the proper maintenance and discipline of the institution deemed to be university shall be vested in the Vice-Chancellor.

vii) The Vice-Chancellor shall have the power to re-delegate some of his powers to any of his/her subordinate officers with the concurrence and approval of the Board of Management.

viii) The Vice-Chancellor shall exercise all other powers as may be delegated to him/her by the Board of Management.

ix) The Vice-Chancellor shall exercise such other powers and perform such other functions as may be prescribed by the Regulations, Rules and Bye-Laws.

6.4

Pro Vice-Chancellor

(i)

The post of the Pro Vice-Chancellor may be created with the approval of the Board of management and the Central Government.

(ii)

The Pro Vice-Chancellor shall be appointed by the Board of Management on the recommendation of the Vice-Chancellor.

(iii)

The Pro Vice-Chancellor shall hold office co-terminus with the office of the Vice-Chancellor and at the pleasure of Vice-Chancellor.

(iv)

The Pro Vice-Chancellor shall have the powers and duties as prescribed by Rules of the institution deemed to be university.

6.5

Registrar

(i)

The Registrar shall be a whole time salaried officer of the institution deemed to be university and shall be appointed by, the Board of Management on the recommendations of the Selection Committee consisting of the following:

1. Vice Chancellor - Chairperson
2. One nominee of the Chancellor
3. One nominee of the Board of Management.
4. One expert appointed by the Board of Management who is not an employee of the institution deemed to be university.

(ii)

The emoluments and other terms and conditions of service of the Registrar shall be as prescribed by Rules of the

institution deemed to be university.

(iii)

When the office of the Registrar is vacant or when the Registrar is absent by reason of illness or any other reason, the duties and functions of the Registrar shall be performed by such other person as the Vice Chancellor may appoint for the purpose.

(iv)

The Registrar shall be ex-officio Secretary of the Board of Management, the Academic Council and the Planning and Monitoring Board, but shall not be deemed to be a member of any of these authorities.

(v)

The Registrar shall be directly responsible to the Vice-Chancellor and shall work under his direction.

(vi)

The following shall be the duties of the Registrar: -

1. To be the custodian of the records and the funds and such other property of the institution deemed to be university as the Board of Management may commit to his/her charge;
2. To conduct the official correspondence on behalf of the authorities of the institution deemed to be university;
3. To issue notices convening meetings of the authorities of the institution deemed to be university and all Committees and sub-Committees appointed by any of these authorities;
4. To maintain the minutes of the meetings of all the authorities of the institution deemed to be university and of all the Committees and sub-Committees appointed by any of these authorities;
5. To make arrangements for and supervise the examinations conducted by the institution deemed to be university;
6. To represent the institution deemed to be university in suits or proceedings by or against the institution deemed to be university, sign powers of attorney and perform pleadings or depute his/her representatives for this purpose;
7. To enter into agreement, sign documents and authenticate records on behalf of the institution deemed to be university;
8. To make arrangements to safeguard and maintain the buildings, gardens, office, canteen, cars and other vehicles, laboratories, libraries, reading rooms, equipment and other properties of the institution deemed to be university;
9. To perform such other duties as may be specified in the Rules or as may be assigned by the Board of management or the Vice-Chancellor from time to time.

6.6

Finance Officer

(i)

The Finance Officer shall be a whole time salaried officer of the institution deemed to be university and shall be appointed by the Board of Management.

(ii)

The emoluments and other terms and conditions of service of the Finance Officer shall be as may be prescribed by Rules of the institution deemed to be university.

(iii)

The Finance Officer shall work under the direction of the Vice-Chancellor and shall be responsible to the Board of Management through the Vice-Chancellor.

(iv)

He/she shall be responsible for the preparation of annual budget, estimates and statements of account for submission to the Finance Committee and the Board of Management.

(v)

He/she shall be responsible for the management of funds and investments of institution deemed to be university, subject to the control of Board of Management.

6.7

Controller of Examinations

(i)

The Controller of Examinations shall be appointed by the Board of Management

(ii)

The emoluments and other terms and conditions of service of the Controller of Examination shall be as may be

prescribed by Rules of the institution deemed to be university.

(iii)

The Controller of Examinations shall ensure that all the specific directions of the Board of Management, Academic Council and Vice-Chancellor in respect of examination and evaluation are complied with.

(iv)

The Controller of Examinations shall be a permanent invitee to the Board of Management.

6.8

Dean

The Departments dealing with allied subjects could be grouped into faculties :

Each faculty may be headed by a Dean.

6.9

Head of the Department

(i)

There shall be a Head of the Department for each of the Departments in the institution deemed to be university who shall be appointed by the Vice-Chancellor from amongst the Professors of the Department.

Provided that if there is no Professor in the Department or there is only one Professor in the Department whose term as Head of the Department is ending, the Vice-Chancellor may appoint an Associate Professor as Head of the Department.

(ii)

The term of the Head of the Department shall normally be 3 years and he/she shall be eligible for reappointment for one more term, but not for two consecutive terms.

(iii)

The powers and functions of the Head of the Department prescribed by Rules of the institution deemed to be university.

7.0

Delegation of Powers

Subject to the provisions of these Regulations and Rules, any authority or officer of the institution deemed to be university, with the approval of Board of Management, may delegate its power to any other authority or officer or person under their respective control and subject to the conditions that the overall responsibility for exercising the powers so delegated shall continue to rest in the authority or officer delegating such powers.

8.0

Seniority List

(a)

Whenever in accordance with these Rules any person is to hold an office or to be a member of an authority of the Institution deemed to be University by rotation of seniority, such seniority shall be determined according to the length of the continuous service of such person in the grade in the institution deemed to be university in accordance with such other principles as the Board of Management may from time to time prescribe.

(b)

It shall be the duty of the Registrar to prepare and maintain in respect of each class/cadre of persons to whom the provisions of these Rules apply a complete and up-to-date seniority list in accordance with the provisions of the foregoing clause.

(c)

If two or more persons have equal length of continuous service in a particular grade/cadre or the relative seniority of any person or persons is in doubt, the Registrar may on his/her own notion and shall at the request of any such person, submit the matter to the Board whose decision shall be final and binding.

9.0

Dispute as to Membership

If any question arises, whether any person has been duly nominated or appointed, as or is entitled to be a member of any authority or any committee of the institution deemed to be university, the matter shall be referred to the Chancellor, whose decision thereon shall be final and binding.

10.0

Grievance Redress Mechanism

For individual grievances and complaint(s), every institution deemed to be university shall have a Grievance Redress

Mechanism as may be prescribed by the Rules.

11.0

Resignation

Any member other than an ex-officio member of any authority may resign by a letter addressed to the Registrar and the resignation shall take effect as soon as it is accepted by the Chancellor or the Chairman of the Board of Management, as the case may be.

12.0

Acting Chairman of the Meetings

Where no provision is made for a Chairman to preside over a meeting of an authority of the institution deemed to be university or any committee of such authority, or if the Chairman so provided is absent, the members present may select one from amongst themselves to preside at such meeting.

13.0

Validation of certain actions, decisions

No action or proceedings of any authority or anybody or any committee of the institution deemed to be university shall be invalid merely by reason of any vacancy therein.

14.0

Disqualification

(a)

A person shall be disqualified for being chosen as and for being a member of any of the authorities of the institution deemed to be university:

i) if he/she is of unsound mind

ii) if he/she is an un-discharged insolvent

iii) if he/she has been convicted by a court of law of an offence involving moral turpitude.

(b)

If any question arises as to whether a person is or has been subjected to any disqualifications mentioned above, the question shall be referred for decision to the Chancellor and his decision shall be final.

15.0

Filling of Casual Vacancies

Casual vacancies among the members (other than ex-officio members) of any authority or any Committee of the institution deemed to be university shall be filled as soon as it may be convenient by the such authority or the person who appointed or co-opted the member whose place has become vacant and the person appointed or co-opted to a casual vacancy shall be member of such authority or committee for the residual term for which the person whose place he/she fills would have been a member.

16.0

Review of the Academic Activities of the institution deemed to be university

The functioning of the institution deemed to be university may be reviewed after a period of every 5 year or earlier, if necessary, by a Committee appointed by the Commission.

17.0

Inspection of the institution deemed to be university by the Commission--

i) The Commission may cause an inspection, to be made by such person or persons as it may direct, of the institution deemed to be university, its buildings, fixtures and fittings, laboratories and equipment as also examinations, teaching and other work carried on or done and, if necessary, to cause an inquiry to be made in respect of any matter connected with the administration or finances of the institution deemed to be university.

ii) The Commission shall, in every case, give notice to the institution deemed to be university of its intention to cause an inspection or inquiry to be made and on receipt of such a notice, the institution deemed to be university shall have the right to make such representations to the Commission as it may consider necessary.

iii) Where an inspection or inquiry has been caused to be made by the Commission, the institution deemed to be university shall be entitled to appoint a representative who shall have the right to be present and to be heard at such inspection or inquiry.

iv) The Commission may communicate the result of such inspection or inquiry together with such advice as it may be pleased to offer as to the action to be taken by the institution deemed to be university to the Vice-Chancellor who shall

communicate the same to the Board of Management.

v) The Board of Management shall give proper consideration to the said communication regarding the result of inspection or inquiry and the proposals for action by the institution deemed to be university and communicate to the Commission the action, if any, which it proposes to take or has taken upon the result of such inspection or inquiry.

vi) Where the Board of Management does not, within a reasonable time, take any action to the satisfaction of the Commission, the Commission may, after giving due consideration to the explanation furnished or representation made by the Board of Management to it, issue such directions as it may think fit and the Board of Management shall comply with such directions.

18.0

Income and Property of the institution deemed to be university to be utilized for its objectives only

The income and property of the institution deemed to be university shall be utilized solely for promoting the objectives of that institution deemed to be university.

19.0

Ban on payment or transferring of Income and Property of the institution deemed to be university by way of Profit

No portion of the income and property of the institution deemed to be university shall be paid or transferred directly or indirectly, by way of dividend, bonus or otherwise howsoever by way of profit to the persons "ho were at any time or are members of the institution deemed to he university or to any of them or any persons claiming through them, provided that nothing herein contained shall prevent the payment in good faith of remuneration to any member thereof or other person as consideration for any service rendered to the institution deemed to he university or for traveling or other allowances and such other charges.

20.0

Funds, Accounts, Audits and Annual Report

i) The accounts of the institution deemed to be university shall be maintained in the name of the institution deemed to be university and not in the name of the sponsoring Society or Trust. The accounts of the institution deemed to be university shall be kept in such forms as may be laid down by the Board of Management and shall conform to the rules, if any, prescribed by the Commission. The accounts of the institution deemed to be university shall be open for examination by the Controller and Auditor General of India. The accounts shall also be open for inspection by the Commission.

ii) The annual financial statements and accounts shall be audited by the Chartered Accountant of the institution deemed to be university.

iii) Annual Reports and the Audit Reports shall be submitted by the institution deemed to be university to the Commission within nine months of the closure of the accounting year.

21.0

Rules of the institution deemed to be university

Subject to the provisions of the Regulations and the Rules of the Commission, the Board of Management shall, in addition to all other powers vested in it, have the power to frame the Rules of the institution deemed to be university that may provide for all or any of the following matters: -

(i)

establishment of Departments of teaching;

(ii)

courses of study to be laid down for all degrees, diplomas and certificates of the Institution deemed to be University;

(iii)

grant of academic awards (such as degrees and diplomas) and distinctions;

(iv)

admission of students to the Institution deemed to be University and their enrolment as such;

(v)

the fees to be charged for courses of study and for admission to the examinations, degrees, diplomas and certificates of the Institution deemed to be University.

(vi)

conduct of examinations, appointment of examiners and approval and publication of results thereof;

(vii)

institution of award of fellowships, scholarships, studentships, medals and prizes and prescription of the conditions thereof;

(viii)

maintenance of discipline among the students;

(ix)

maintenance of discipline among the employees;

(x)

establishment of halls of residence and conditions of residence and health of the students;

(xi)

classification, emoluments, method of appointment and determination of the terms and conditions of service of the staff;

(xii)

such other powers, functions and duties of the Academic Council as are not mentioned elsewhere;

(xiii)

constitution, powers and functions of the Planning & Monitoring Board

(xiv)

Powers and functions of the Board of Studies;

(xv)

composition, powers and functions of the Grievance Redress Mechanism;

(xvi)

prescribing persons as such other officers of the institution deemed to be university;

(xvii)

such other powers and functions of the Vice-Chancellor as are not specified elsewhere;

(xviii)

emoluments, terms and conditions of service of the Register

(xix)

emoluments, terms and conditions of service of the Finance Officer;

(xx)

constitution of pension, provident fund, insurance etc. for the benefit of the officers, teachers, and the other staff;

(xxi)

establishment of special centers;

(xxii)

creation, composition and functions of any committees or body, which is considered necessary for the work of the institution deemed to be university;

(xxiii)

procedure for preparation and submission of budget estimates;

(xxiv)

procedure for convening of meeting of any authority or committee;

(xxv)

laying down of procedures to be observed at any meeting of any authority or any committee;

(xxvi)

constitution of any other body as an authority of the institution deemed to be university;

(xxvii)

delegation of powers to any authority or officer;

(xxviii)

all other matters by this Regulation or the Rules may be provided but no rule shall be made affecting the condition of residence, health, discipline, admission, enrolment of students, conditions, mode of appointments, duties of examiners, conduct of and standard of examinations or any course of study without consulting the Academic Council.

22.0

Interpretation Clause

In the event of conflict of opinion with regard to interpretation of Regulations or the Rules of the Commission, the opinion of the Commission shall be final.

23.0

Adjustment of Income and Proper on Dissolution of the institution deemed to be university

If on the winding up or dissolution of the institution deemed to be university there remains, after the satisfaction of all its debts and liabilities, any property whatsoever, the same shall not be paid or distributed among the members of the institution deemed to be university or any of them, but shall be transferred to the Commission, or other bodies in consultation with the agencies concerned who have helped in creation of those assets.

24.0

Legal Proceedings

i) For the purpose of Section 6 of the Societies Registration Act, 1860, the person in whose name the institution deemed to be university may sue or be sued shall be the Registrar.

ii) No suit or legal proceedings shall lie against the Central Government or the Commission or the institution deemed to be university or an Officer of the institution deemed to be university or a member of the authority of the institution deemed to be university in respect of anything done or purported or intended to be done in pursuance of any of these Regulations.

25.0

Alteration, Amendments and Additions to the Rules governing the functioning of the institution deemed to be university--

No Rule and Bye law governing the functioning of the institution deemed to be university may be altered, amended and added to by the Board of Management or such other competent body to the effect that it is in conflict with or to the detriment of the provisions of these Regulations; and, no alteration, amendment or addition to the Rules and bye laws shall be given effect to without the prior approval of the Commission in accordance with the provision of the Societies Registration Act, 1860 or the relevant Public Trust Act as in force for the time being.

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